

22STCV3909 22STCV3909

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Case Number: 22STCV3909 Hearing Date: July 30, 2026 Dept: 414

22STCV39091 LL JANE DOE BC V.

DEFENDANT DOE SCHOOL DISTRICT ET AL.

Thursday, July 30, 2026

[TENTATIVE]

ORDER GRANTING MOTION FOR SUMMARY JUDGMENT BY DEFENDANT, LOS ANGELES UNIFIED SCHOOL DISTRICT (DOE 1), OR ALTERNATIVELY FOR SUMMARY ADJUDICATION (8399)

I.

BACKGROUND

The second amended

complaint alleges that Plaintiff attended Los Angeles Unified School District (LAUSD) during the 1977-1978 school year, at which time she was sexually assaulted by Webster Johnson, Plaintiff's track coach, who was employed by Defendant at the time. Plaintiff alleges claims for negligence and negligent supervision.

II. ARGUMENTS

A.

Motion filed September 18, 2024

Defendant argues that

it is not vicariously liable for Johnson's conduct because Plaintiff cannot identify a school administrator who had the duty to hire, supervise, or retain Johnson, or that an administrator knew or should have known of Johnson's

dangerous propensities. Plaintiff did not report the incidents at the time or even after reaching adulthood. There is no evidence of discipline against Johnson for sexual abuse.

B.

Opposition filed July 10, 2026

In opposition, Plaintiff

argues that Defendant had a duty to supervise Plaintiff and Johnson and protect Plaintiff from sexual abuse. Plaintiff need not identify a specific administrator who personally knew Johnson's propensities. The absence of complaints in Johnson's personnel file is not evidence that no warnings, complaints, or reports existed. Defendant relies on some facts but not others and does not meet its burden in moving for summary judgment or adjudication.

C.

Reply filed July 20, 2026

In reply, Defendant

argues Plaintiff's evidence is inadmissible and should not be considered. Plaintiff has not identified any LAUSD employee who supervised Johnson who had knowledge of his dangerous propensities. The Child Abuse and Neglect Reporting Act ("CANRA") did not go into effect until the mid-1980s, and its standards do not apply.

Johnson was arrested

for shoplifting as a teenager, noted by the California Commission on Teacher Credentialing, who credentialed Johnson regardless.

III.

LEGAL STANDARDS

Summary judgment is

proper "if all the papers submitted show that the material facts are undisputed and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., § 437c subd. (c).) The moving party's burden is to show that based on the undisputed facts "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c subd. (p)(2).)

If that threshold burden is met, the burden shifts to the opposing party to

show a triable issue of one or more material facts. (Code Civ. Proc., §437c(p)(1).)

A party may move for

summary adjudication “as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages.” (Code Civ. Proc., § 437c subd. (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c. subd.(f)(1).)

The court applies the

three-step analysis to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents' claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (Torres v. Reardon (1992) 3 Cal.App.4th 831, 836.)

IV.

DISCUSSION

A.

Allegations and relevant duties.

Plaintiff alleges

claims for negligence and negligent hiring, retention, and supervision. An employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee if the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) Both causes of action require facts showing foreseeability. In particular, negligent supervision requires proof of LAUSD's knowledge of the particular risk.

As a school district,

Defendant owes a special duty of care to its students. (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 869–870

["In addition, a school district and its employees have a special relationship with the district's pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, 'analogous in many ways to the relationship between parents and their children.'"]. A school district may be held vicariously liable for negligent hiring and supervision if a supervisory or administrative employee of the school district knew or should have known of the employee's propensities and nevertheless hired, retained, and inadequately supervised. (Hart at 865.) This includes teachers and counselors to the extent the employee has the responsibility of taking reasonable measures to guard pupils against harassment and abuse. (Hart at 871.)

B.

Analysis

Plaintiff's objections

are addressed to the material facts not to particular evidence. The material facts are Defendant's characterization of evidence, not evidence. Plaintiff's particular objections to Johnson's personnel file are OVERRULED. It is admissible by way of the declaration of Marilyn Fuller, Director of Human Resources, with oversight of employee personnel files. She has authenticated Johnson's personnel file. (Fuller Declaration ¶ 3.)

Defendant contends it

did not have knowledge of Johnson's propensities based on the absence of disciplinary records in Johnson's personnel file about his engaging in inappropriate behavior. (UF 11.) As Plaintiff argues, this material fact assumes that any pertinent records demonstrating knowledge of Johnson's propensities would be in the personnel file in the first instance.

Plaintiff argues that

Defendant's person most knowledgeable, Marilyn Fuller, testified that complaints or reports were not maintained in employee personnel files. The only documents in employee personnel files are documents that have been issued to the employee or signed by the employee. When asked where any complaints about a person would go, if not the personnel file, Ms. Fuller testified "We had no legal obligation to maintain that information." (P's Ex.

2, 72:8-9; “there was no legal mandate that we had to maintain or retain documents of complaints ... for the 1975 through 1980 time period.” (Id. 73.)

Defendant argues it lacked knowledge of the alleged misconduct because Plaintiff never reported it to anyone at the school or to law enforcement. (UF 10; Plaintiff’s Dep. 89:19–21, 120:18–20.) Plaintiff offers no evidence creating a triable dispute on that issue. Her testimony that she disclosed the alleged misconduct to her sister does not establish notice to Defendant or the police. Nor is it material that the administrators employed by Defendant at the relevant time are now retired or deceased. (UF 12.) The undisputed evidence establishes that Plaintiff did not report the alleged misconduct to either the school or law enforcement.

To dispute the contention that Defendant knew or should have known, Plaintiff proffers the declaration of Gabriel Grosz, who was employed by LAUSD for the relevant time period and knew Johnson. He personally witnessed a female student athlete sitting on Johnson’s lap while he kissed her on the cheek on school grounds. (Grosz decl., ¶ 5.) Defendant’s objection #1 and #2 are overruled. He believed these interactions were inappropriate.

Grosz’s statements about “discussions” among school personnel are hearsay. Defendant’s Objections 4 and 5 are sustained. His understanding of policies or training at the time is irrelevant. Objections 6-9 are sustained. That he was called into the principal’s office about his interactions with a student is irrelevant. Objections 10-12 are sustained.

Plaintiff proffers the testimony of Rosamy Gross, who was also present on campus during the relevant time period. Her testimony about “discussions” being had about Johnson is hearsay. Her understanding that staff members had concerns is speculative. Defendant’s objections 16-17 are sustained. Her testimony about training or policy is irrelevant. Objections 20-25 are sustained.

Her testimony that she regularly observed Johnson on campus interacting with students is irrelevant. Objection No. 14 is sustained.

Accordingly,

Plaintiff's additional facts 16-17, that administrators were aware of Johnson's sexual relationships with minors is not supported. Plaintiff's additional facts that Johnson abused multiple female students is also irrelevant. The issue is whether there is any evidentiary basis that defendant knew or should have known that Johnson was engaging in this type of behavior. This is not supported by either the Grosz or Gross declaration.

John Doe 101 was

sexually abused, and his testimony supports the contention that inappropriate conduct was being encouraged by staff members, but he does not testify that he was abused by Johnson and reported it.

Jane Doe DG's

testimony that Johnson regularly engaged in inappropriate sexual conduct and sexually abused her does not, by itself, establish that Defendant had notice of his alleged misconduct. The relevant issue is whether Johnson's conduct was reported to Defendant or otherwise came to Defendant's attention. Plaintiff cites no evidence that such a report was made. Accordingly, as Defendant argues in reply, Plaintiff's additional facts are largely immaterial to the issue presented by this motion.

Plaintiff's evidence

confirms that she did not report the alleged misconduct. In addition, Ms. Fuller testified that LASD did not retain records of complaints of this nature. Together, this evidence supports Defendant's contention that there is no evidence Defendant knew or should have known of Johnson's alleged misconduct.

V.

CONCLUSION

Plaintiff has not met

her burden of proffering evidence controverting Defendant's contention that it knew or should have known of Johnson's propensity. (Code Civ. Proc., § 437c(p)(2). Accordingly, Defendant's motion for summary judgment is GRANTED.